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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory Utah

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:34:15 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT:CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency does not always provide a minimum 12-month eligibility period for each child, as required by 98.21(a)(1). (Plan Questions 2.5.2a and 2.5.2c)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency will meet internally to discuss how a change will be implemented in the case management system to provide for the ability to suspend and reopen child care subsidy cases during the 12-month eligibility period.	12/31/2024
2	A change request will be submitted to the Division of Technology Services, and a determination will be made as to the prioritization for these changes in the system based on other priorities and the current timeline.	01/31/2025
3	Development and testing of the system updates will occur. Policy, staff training and consumer outreach materials will be updated. The new system changes and policy will be implemented.	12/31/2025

ELIGIBILITY AND ENROLLMENT:PRIORITIZATION OF POPULATIONS

Reason(s) for non-compliance:

- The Lead Agency does not have a grace period, established in consultation with the State health agency, for school-age children who are in foster care or for school-age children experiencing homelessness to receive CCDF assistance while providing their families with a reasonable time to take any necessary actions to comply with immunizations and other health and safety requirements for all provider types, as required by 98.41(a)(1)(i)(C). (Plan Questions 2.3.3bi and 2.3.3bii)

Overall Target Completion Date: 07/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Department of Health and Human Services - Office of Licensing (DHHS-OL) will have discussions with the Lead Agency and internally to determine what steps are needed to come into compliance in this area around verifying immunization records and exemptions for school-age children. DHHS-OL will determine whether a statute change is needed or an administrative rule change only. Additionally, they will review current licensure and training procedures used for other age groups in care to determine whether a similar process could be replicated for school-age children.	05/30/2025
2	If it is determined that only an administrative rule change is needed, a draft amendment of the administrative rule will be developed with opportunities for feedback from stakeholders, advisory committees and the public. The administrative rule will then become effective, and DHHS-OL will implement the rule, including updating their interpretation manual, provider training and inspection procedures and checklists.	11/30/2025
3	If it is determined that a state statute change is needed, DHHS-OL will coordinate with the Lead Agency and the state legislature to determine changes needed and draft language for a bill to move through Utah's 2026 legislative session. For full implementation, the administrative rule, the interpretation manual, provider training and inspection procedures and checklists would then be updated to align with a statutory change. Child care providers will be notified of the changes.	07/01/2026

EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not provide data on the extent to which CCDF providers charge families additional amounts above the required co-payment (including data on the size and frequency of such amounts), as required by 98.45(b)(5). (Plan Question 3.1.2eii)

Overall Target Completion Date: 06/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency will extract data from the Market Rate Study to calculate average additional amounts child care providers charge families above the set subsidy rates.	12/31/2024
2	Data collected will be used to calculate average out-of-pocket expenses for families and amend the State Plan to reflect these additional amounts providers charge families.	06/30/2025

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency will apply for a transitional waiver from the Administration for Children and Families - Office of Child Care.	12/30/2024
2	The Child Care Solutions and Workforce Productivity report will be reviewed and additional data will be collected around supply gaps for infants and toddlers, children with disabilities and children in underserved geographic areas. Policy guidance and technical assistance will be	04/30/2025

	received from federal partners around best practices as well as more information about how other states are meeting these requirements.	
3	The Lead Agency will meet with interested and relevant internal and external stakeholders to review data and discuss budgeting and the development of these grants or contracts.	10/31/2025
4	Draft grant requirements, administrative rule, policy, consumer education materials and IT system business rules for changes will be developed. Feedback will be received from internal and external stakeholders and the Lead Agency's Advisory Committee, and revisions will be made as needed.	01/31/2026
5	Administrative rule, policy, IT system changes will be implemented, and consumer education materials will be distributed. Grants or contracts will be available for eligible organizations or programs to apply.	08/01/2026

EQUAL ACCESS:SUPPLY BUILDING STRATEGIES

Reason(s) for non-compliance:

- The Lead Agency does not adequately describe how they identify gaps in the supply of child care for children with disabilities and in the supply of child care during non-traditional hours, as required by 98.16(x). (Plan Questions 4.5.4c and 4.5.4d)

Overall Target Completion Date: 09/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency will research data available and receive technical assistance from our federal partners regarding best practices for collecting supply gap data around children needing non-traditional care and children with disabilities as	02/28/2025

	well as how other states have met these requirements.	
2	Supply gap data will be collected that can be used to inform supply building strategies for these two special populations.	04/30/2025
3	Data will be reviewed, and the State Plan will be amended to better reflect the data used to inform supply gap strategies.	09/30/2025

HEALTH AND SAFETY: RATIOS AND GROUP SIZE FOR CCDF PROVIDERS

Reason(s) for non-compliance:

- The Lead Agency has not established a standard that addresses group size limits for license-exempt family child care providers or license-exempt in-home providers when the children in care are related to the provider, as required by 98.41(d)(1). The Lead Agency exempts certain relative providers from a standard for whom exemptions are not allowed (98.42(c)). (Plan Questions 5.2.2d and 5.2.2f)
- The Lead Agency does not require an annual inspection for license-exempt family child care providers for compliance with a standard for group size, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency has not established a standard that addresses group size limits for license-exempt family child care providers or license-exempt in-home providers when the children in care are related to the provider, as required by 98.41(d)(1). The Lead Agency exempts certain relative providers from a standard for whom exemptions are not allowed (98.42(c)). (Plan Questions 5.2.2d and 5.2.2f)	01/31/2025
2	The Department of Health and Human Services - Office of Licensing (DHHS-OL) will internally review and discuss interpretation manual updates	01/31/2025

	needed to meet federal requirements regarding group size limit and the definition of relative.	
3	DHHS-OL will update the interpretation manual for Family, Friend and Neighbor providers to ensure compliance with federal requirements. The Lead Agency will update policy to align. Family, Friend and Neighbor providers will be notified of this change.	04/30/2025
4	The Lead Agency does not require an annual inspection for license-exempt family child care providers for compliance with a standard for group size, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)	01/31/2025
5	The Department of Health and Human Services - Office of Licensing (DHHS-OL) will internally review and discuss interpretation manual updates needed to meet federal requirements regarding group size limit and the definition of relative.	01/31/2025
6	DHHS-OL will update the interpretation manual for Family, Friend and Neighbor providers to ensure compliance with federal requirements. The Lead Agency will update the inspection procedures and checklists to align. Family, Friend and Neighbor providers will be notified of this change.	04/30/2025

HEALTH AND SAFETY:PREVENTION AND CONTROL OF INFECTIOUS DISEASES

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for school-age children attending child care programs to be age-appropriately immunized, for licensed centers, licensed family child care homes, license-exempt centers, license-exempt family child care homes, license-exempt in-home care, or out-of-school programs, as required by 98.41(a)(1)(i). (Plan Questions 5.3.1bi, 5.3.1bii, 5.3.1biv, 5.3.1bv, 5.3.1bvi, and 5.3.1bvii)
- The Lead Agency does not require pre-service or orientation training on prevention and control of infectious diseases (including immunizations) for licensed centers, licensed family child care homes, license-exempt centers, license-exempt family child care homes, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1a)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers or an annual inspection for license-

exempt centers or license-exempt family child care providers for compliance with a standard for the prevention and control of infectious diseases (including immunizations) and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 07/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency has not established a standard for school-age children attending child care programs to be age-appropriately immunized, for licensed centers, licensed family child care homes, license-exempt centers, license-exempt family child care homes, license-exempt in-home care, or out-of-school programs, as required by 98.41(a)(1)(i). (Plan Questions 5.3.1bi, 5.3.1bii, 5.3.1biv, 5.3.1bv, 5.3.1bvi, and 5.3.1bvii)	05/30/2025
2	The Department of Health and Human Services - Office of Licensing (DHHS-OL) will have discussions with the Lead Agency and internally to determine what steps are needed to come into compliance in this area around verifying immunization records and exemptions for school-age children. DHHS-OL will determine whether a statute change is needed or an administrative rule change only.	05/30/2025
3	If it is determined that only an administrative rule change is needed, a draft amendment of the administrative rule will be developed with opportunities for feedback from stakeholders, advisory committees and the public. The administrative rule will then become effective, and DHHS-OL will implement the rule, including updating their interpretation manual. Child care providers will be notified of the changes.	11/30/2025
4	If it is determined that a state statute change is needed, DHHS-OL will coordinate with the Lead Agency and the state legislature to determine	07/01/2026

	changes needed and draft language for a bill to move through Utah's 2026 legislative session.	
5	The Lead Agency does not require pre-service or orientation training on prevention and control of infectious diseases (including immunizations) for licensed centers, licensed family child care homes, license-exempt centers, license-exempt family child care homes, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1a)	05/30/2025
6	The Department of Health and Human Services - Office of Licensing (DHHS-OL) will have discussions with the Lead Agency and internally to determine what steps are needed to come into compliance in this area around verifying immunization records and exemptions for school-age children. DHHS-OL will determine whether a statute change is needed or an administrative rule change only. DHHS-OL will review current training procedures used for other age groups in care to determine whether a similar process could be replicated for school-age children.	05/30/2025
7	If it is determined that only an administrative rule change is needed, a draft amendment of the administrative rule will be developed with opportunities for feedback from stakeholders, advisory committees and the public. The administrative rule will then become effective, and DHHS-OL will implement the rule, including updating training.	11/30/2025
8	If it is determined that a state statute change is needed, DHHS-OL will coordinate with the Lead Agency and the state legislature to determine changes needed and draft language for a bill to move through Utah's 2026 legislative session. Provider training would then be updated to align with a statutory change.	07/01/2026
9	The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers or an annual	05/30/2025

	inspection for license-exempt centers or license-exempt family child care providers for compliance with a standard for the prevention and control of infectious diseases (including immunizations) and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)	
10	The Department of Health and Human Services - Office of Licensing (DHHS-OL) will have discussions with the Lead Agency and internally to determine what steps are needed to come into compliance in this area around verifying immunization records and exemptions for school-age children. DHHS-OL will determine whether a statute change is needed or an administrative rule change only. DHHS-OL will review current inspection procedures and checklists used for other age groups in care to determine whether a similar process could be replicated for school-age children.	05/30/2025
11	If it is determined that only an administrative rule change is needed, a draft amendment of the administrative rule will be developed with opportunities for feedback from stakeholders, advisory committees and the public. The administrative rule will then become effective, and DHHS-OL will implement the rule, including updating inspection procedures and checklists.	11/30/2025
12	If it is determined that a state statute change is needed, DHHS-OL will coordinate with the Lead Agency and the state legislature to determine changes needed and draft language for a bill to move through Utah's 2026 legislative session. Inspection procedures and checklists would then be updated to align with a statutory change. Child care providers will be notified of the changes.	07/01/2026

